

Present:
Mr. Justice S M Kuddus Zaman

CIVIL REVISION NO.101 of 2006.

Md. Najiruddin Mollah and others
.....**Petitioners**

-Versus-

Md. Tajimuddin Sardar and others
...**opposite parties**

No one appears
...**For the petitioners**

No one appears
...**For the opposite parties**

Heard & Judgment on:24.01.2024.

This Rule was issued calling upon the opposite party Nos.1-5 to show cause as to why the judgment and order dated 17.03.2005 passed by the learned Additional District Judge, Court No.1, Pabna passed in Miscellaneous Appeal No.3 of 2004 setting aside those dated 06.10.2003 passed in Miscellaneous Case No.82 of 2002 passed by the learned Joint District Judge, 1st Court, Pabna should not be set aside and/or such other or further order or orders passed as to this Court may seem fit and proper.

Facts in short are that the petitioner was petitioner in Miscellaneous Case No.82 of 2002 which was pending for hearing in the 2nd Court of Joint Sessions Judge, Pabna on 06.10.2003. On above date petitioner submitted a petition for adjournment and the opposite party was present. The learned Joint District Judge rejected above petition for adjournment and dismissed the case for default vide judgment and order dated 06.10.2003.

Being aggrieved by above judgment and order of the learned Joint Sessions Judge opposite party as appellant preferred Miscellaneous Appeal No.03 of 2004 to the District Judge, Pabna which was heard

by learned Additional District Judge, 1st Court, Pabna who on the basis of consent of the learned Advocate for the respondent allowed above appeal, set aside the impugned judgment and order dated 06.10.2003 passed in Miscellaneous Case No.82 of 2002 by the learned Joint District Judge, 1st Court, Pabna and restored above case in its original file and number.

Being aggrieved by above judgment and order of the learned Additional District Judge respondent as petitioner moved to this court and obtained this rule.

None appears for the petitioner or the opposite party when the case was taken up for hearing although the case appeared in the list for hearing today.

It turns out from record that the Advocates of the Pabna District Bar were boycotting the court of the learned Joint District Judge, 2nd Court, Pabna on 06.10.2003. The learned Advocate for the petitioner of above miscellaneous case submitted a petition for adjournment of hearing. But the learned Joint Session Judge rejected the above petition and dismissed above miscellaneous case for default.

At the time of hearing of above appeal the learned Advocates for both side were present and they concurrently submitted that on the date of dismissal of Miscellaneous Case No.82 of 2002 the learned Advocates were boycotting the court. Moreover the learned Advocate for the respondent gave consent for allowing the appeal and setting aside above order of dismissal of the miscellaneous case and for restoration of above miscellaneous case.

On consideration of above facts and circumstances of the case and consent of the learned Advocate for the respondent the learned Additional District Judge allowed above appeal by passing the impugned judgment and order.

Since the impugned judgment and order dated 17.03.2005 was passed by the learned Additional District Judge, 1st Court, Pabna on the basis of consent of the learned Advocate for the respondent this revision at the instance of the respondent is not tenable in law.

In above view of the materials on record I am unable to find any substance in this revision and the rule issued in this connection is liable to be discharged.

In the result, the Rule is discharged.

Let a copy of this judgment be transmitted down to the Court concerned at once.